

TENTATIVE RULING

Case: **Din v. Sutter Health**
Case No. CV-2020-720

Hearing Date: **February 27, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Adnan M. Din, M.D., F.A.C.S.’ motion to vacate judgment and reopen phase one (or in the alternative, for limited evidentiary hearing) based on extrinsic fraud/mistake and newly discovered evidence of agency/ratification/control is **DENIED**. (Code Civ. Proc., § 473, subd. (d); *Olivera v. Grace* (1942) 19 Cal.2d 570, 575-576.) The Court finds that plaintiff fails to provide any legal argument or authority to support the relief requested pursuant to Code of Civil section 473(d). (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Moreover, section 473(d) relief is not available when the moving party is relying on extrinsic evidence. (*Pittman v. Beck Park Apartments Ltd.* (2018) 20 Cal.App.5th 1009, 1020-1021; *OC Interior Services, LLC v. Nationstar Mortgage, LLC* (2017) 7 Cal.App.5th 1318, 1327-1328.) The Court further finds that plaintiff fails to show extrinsic fraud or mistake because the evidence identified in the privilege log was available to plaintiff prior to and during the trial of this matter. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981, 982; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, 472 – 473; Chacon Decl., ¶¶ 4, 5, 7 and 8, Exhibits A – C.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lewis v. Swartz et al.**
 Case No. CV-2023-1829

Hearing Date: **February 27, 2026** **Department Eleven** **9:00 a.m.**

The Court rules on defendants Cemex, Inc., Cemex Construction Materials Pacific, LLC, and Bert Swartz' request for judicial notice as follows:

- As to requests 1 through 3, judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (c), (h), 453; *Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 600 [“[i]n taking judicial notice of an official document, a court may take notice not only of the fact of the document but also facts that can be deduced, and/or clearly derived from, its legal effect, such as the names and dates contained in the document, and the legal consequences of the document.”].)
- As to requests 4 and 5, judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (b), (h), 453; see *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute. (Evid. Code, § 452, subds. (g), (h).)”].)

The Court **GRANTS** plaintiff Ronald Lewis' request for judicial notice. (Evid. Code, §§ 452, subd. (c), 453.); However, while the courts take judicial notice of public records, they do not take notice of the truth of all matters stated therein. (*Love v. Wolf* (1964) 226 Cal.App.2d 378, 403.) The official character of a document will not make otherwise inadmissible material therein admissible. (*Ibid.*)

The Court declines to rule on plaintiff's evidentiary objections to defendants' evidence as the evidence objected to is not germane to the disposition of defendants' motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court rules on defendants' objections to plaintiff's evidence as follows:

- The Court declines to rule on defendant's evidentiary objections numbers 1 – 16 and 18 - 29 as the evidence objected to is not germane to the disposition of defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)
- The Court **OVERRULES** defendants' objection number 17 because the evidence objected to is not in paragraph 19 of plaintiff's declaration and does not contradict plaintiff's deposition testimony.
- Based on the Court's ruling above regarding plaintiff's request for judicial notice, the Court **OVERRULES** defendants' objection to numbers 30 – 37.